

SETTLEMENT GUARD — what to protect if the approach comes from the Chief Executive

WC/2024/227 · 17 August 2026 · INTERNAL

1 · WHY THE READ IS WELL-FOUNDED ON THE RECORD

Fact	Why it points at the Chief Executive
She signed the letter of 5 June 2026 (ref K-LM26/729)	That letter certifies no fatigue risk assessment, no register, nothing implemented until after 30 June 2024, no consequential changes to procedures , and that complaints are managed “ <i>solely via email or verbally</i> ”. She is the one person in the organisation who has personally certified the absence. A chief executive who signed that knows what it says
The Health Service is funding the report	Confirmed directly with the practice. ⇒ It will hold a causation opinion about its own rostering, obtained on its own request form, at its own cost
The letter to her of 3 August 2026 was acknowledged	Acknowledgement at that level, with no substantive answer, is consistent with the matter having been taken up rather than deflected
Public Sector Act 2022 s 89	Conflict of interest — an officer must not take further action unless authorised by the chief executive . If she is engaged, that provision is live

And structurally it fits the model. Settlement correlates with the appeal outcome at $r = 0.40$ — second only to causation, and ahead of the s 32(5)(a) contest. It was always going to run on the employer's appetite rather than the Regulator's change of mind.

2 · WHAT I WILL NOT DO, AND WHAT WOULD COUNT AS EVIDENCE

The model is not being moved on an expectation. The settlement node stays at 47% until something happens that is not an inference. **What would count:** a written approach from her office or from a legal representative instructed by it · a request for a without-prejudice discussion · the capacity process being paused or transferred out of Corporate Services · pay or leave restored without a decision letter · or the Regulator's posture changing without the Regulator having any new material. ■ **An acknowledgement is not an offer, and silence at that level is as consistent with delegation as with resolution.**

3 · ■■■ THE THING THAT NOW MATTERS MORE — THERE IS ALREADY A DEED

A Deed of Release exists on this file from the reinstatement and abandonment settlement. **Two things about it govern everything that happens next.**

Clause	What it does
The carve-out	The release excludes “ <i>any statutory claim under the Workers' Compensation and Rehabilitation Act 2003 or any claim that cannot be excluded at law</i> ”. ■■■ That is why WC/2024/227 survived — and it is proof they know how to draft a carve-out, because they drafted this one
Non-disparagement	No adverse comment “ <i>publicly or otherwise</i> ” about the Beneficiaries — the Health Service, every other HHS, the Department of Health, the State of Queensland , related bodies, and current and former officers and employees — regarding the matters recited: the employment, the Abandonment Process and the Reinstatement Application
Confidentiality	The deed and the settlement kept strictly confidential, save as required by law, to enforce it, for professional advice, by consent, or to the ATO

■■■ **A SECOND DEED IS THE RISK, NOT THE SETTLEMENT.** Drafted from the same template it would, unless resisted: **release the 2026 employment claims** — the exclusion since 3 July, the unpaid wages, the debited leave, the flexible-working refusal, and the **AD Act window that runs to 2027**; **extend non-disparagement** to the 2026 matters; and **capture the PID and reprisal track**, which has never been deployed and is being held deliberately behind the compensation claim.

4 · THE FIVE THINGS TO HOLD OUT FOR

	Term	Why
1	The employment claims are carved out , in the same form as the WCRA carve-out in the existing deed	■■■ The appeal does not reach the 2026 wages. A deed that settles the appeal and releases the employment claims settles the smaller of the two

	Term	Why
2	The PID and reprisal track is expressly preserved	Never deployed, sequenced behind the compensation claim. ■ A general release ends it silently
3	Non-disparagement is confined to the matters actually settled, and does not extend to statutory disclosures or to evidence given in any proceeding	■ The existing clause reaches the State of Queensland and every current and former officer . A second one on those terms would be very wide
4	Return to the substantive position with the adjustments , or a stated alternative — plus pay restored and leave recredited from 3 July 2026	The report is what makes this askable. ■ It is also the component the appeal cannot deliver at all
5	Confidentiality does not prevent compliance with a statutory obligation, or the use of payroll and employment records	■ The existing deed already shows the safe route: prove the payment from the payslip; do not tender the deed

5 · SEQUENCING — NOTHING CHANGES ON MONDAY

Send the pack. If they are moving, the report is what sets the price; if they are not, it is what makes them. ■ **It is the mechanism, not an alternative to it.**

And 24 August still runs. The deemed refusal is a documented failure at the level *below* the Chief Executive, and it costs nothing to record. ■ **Do not let the capacity process reach a decision first** — a Corporate Services decision on capacity, taken before any resolution, is much harder to unwind than a deemed refusal is to rely on.

■ **AND THE STANDING RULES DO NOT RELAX BECAUSE A SETTLEMENT IS IN PROSPECT.** Nothing about the December 2024 matter, its outcome or the separation document. No conspiracy framing. No use of the word fraud in this track. **The parallel tracks stay sequenced behind the compensation claim until the deed scope is settled — which is precisely the point of everything above.**